

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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WILLIE PARKER,

Plaintiff,

**SUMMONS WITH
VERIFIED COMPLAINT**

-against-

Index No.:

Dated Purchased:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
NICHOLAS MARINO, SHIELD # 19738,
INDIVIDUALLY AND AS A POLICE OFFICER,
POLICE OFFICER WILLIE THOMPSON, SHIELD#
15823, INDIVIDUALLY AND AS A POLICE
OFFICER, AND POLICE OFFICER ROMAN DIAZ,
SHIELD # 07893, INDIVIDUALLY AND AS A
POLICE OFFICER, POLICE OFFICER JOHN DOE #1-#3,
IDENTITIES UNKNOWN, (BELIEVED TO BE MALE
OFFICERS FROM PSA 6), INDIVIDUALLY AND AS
POLICE OFFICERS,

Defendants.

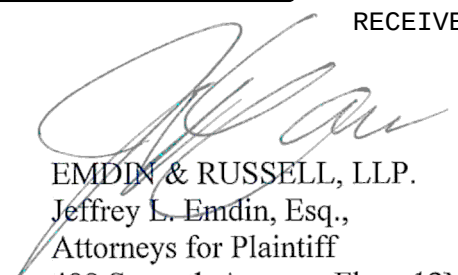
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Plaintiff designates New York
County as the place of trial.
The basis of the venue is place
where the cause of action arose.

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 1st day of October, 2018



EMDIN & RUSSELL, LLP.
Jeffrey L. Emdin, Esq.,
Attorneys for Plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Office of the Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Nicholas Marino
Shield # 19738
c/o PSA 6
2770 Frederick Douglass Blvd,
New York, NY 10039

Police Officer Willie Thompson
Shield # 15823
c/o PSA 6
2770 Frederick Douglass Blvd,
New York, NY 10039

Police Officer Roman Diaz
Shield # 07893
c/o PSA 6
2770 Frederick Douglass Blvd,
New York, NY 10039

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OFFICER, AND POLICE OFFICER ROMAN DIAZ,
SHIELD # 07893, INDIVIDUALLY AND AS A
POLICE OFFICER, POLICE OFFICERS JOHN DOE,
#1-#3 IDENTITIES UNKNOWN, (BELIEVED TO BE
MALE OFFICERS FROM PSA 6), INDIVIDUALLY
AND AS POLICE OFFICERS,

Defendants.

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The plaintiff, Willie Parker, by his attorneys, Emdin & Russell, LLP complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, The City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.
2. Upon information and belief, at all times hereinafter mentioned, the defendant, the City of New York, i.e. "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers therein.
3. Upon information and belief, at all times hereinafter mentioned, and on the 20th day of January, 2018, Police Officer Nicholas Marino, hereinafter referred to as "Marino" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the

PSA 6 pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief, Marino's shield # is 19738.

4. Upon information and belief, at all times hereinafter mentioned and on the 20th day of January, 2018, "Marino" was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.
5. Upon information and belief, at all times hereinafter mentioned, and on the 20th day of January, 2018, Police Officer Willie Thompson, hereinafter referred to as "Thompson" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the PSA 6 pct., his shield number is 15823, and at all relevant times set forth below acted in the capacity of a police officer.
6. Upon information and belief, at all times hereinafter mentioned and on the 20th day of January, 2018, "Thompson" was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.
7. Upon information and belief, at all times hereinafter mentioned, and on the 20th day of January, 2018, Police Officer Roman Diaz, hereinafter referred to as "Diaz" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the PSA 6th pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief, Diaz' shield number is 07893.
8. Upon information and belief at all times hereinafter mentioned and on the 20th day of January, 2018, "Diaz", was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.
9. Upon information and belief, at all times hereinafter mentioned, and on the 20th day of January, 2018, Police Officers John Doe #1-#3, hereinafter collectively referred to

as the “Does” was/were employed as Police Officers by the “City” and/or “NYPD” and assigned to the PSA 6 pct., and at all relevant times set forth below, each acted in the capacity of a police officer. Their identities are presently unknown.

10. Upon information and belief, at all times hereinafter mentioned and on the 20th day of January, 2018, the “Does”, were acting within the scope of his/their employment as a police officer(s) and under the direction of the “City” as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.
11. On the 20th day of January 2018, plaintiff, Willie Parker, an African American male, hereinafter referred to as “Parker” and/or “plaintiff” was a resident of the State of New York, County of New York.
12. That on January 20, 2018 at approximately 3:00 a.m., the plaintiff, Parker, was lawfully standing in the vicinity of 127th Street and 8th Avenue, New York, NY, hereinafter referred to as “the location” attempting to hail a cab.
13. At that time, place and location other civilians were also present.
14. At that time and location, Officers Marino, Thompson, Diaz and Doe, hereinafter collectively referred to as the “officers” were on duty in plain clothes and patrolling in an unmarked car.
15. The plaintiff was not engaged in any criminal activity.
16. Upon information and belief, the unmarked police car pulled up to Parker. Parker opened the door and was told that the vehicle was not a cab. He closed the door and continued to hail a cab.
17. The unmarked vehicle slowly continued across the street near where plaintiff’s cousin, Bryant Cantres, was standing, also attempting to hail a cab.
18. Cantres said out loud, “You didn’t pick him up because he’s black”. Upon information and belief, Marino, Thompson and/or Diaz exited the vehicle and aggressively approached Cantres.
19. Neither Marino, nor Thompson or Diaz identified themselves as police officers.
20. Plaintiff came across the street to attempt to diffuse the situation.

21. One of the individuals, Marino, Thompson or Diaz struck plaintiff in the head with a closed fist. Another "officer" (who still had not identified themselves as officers) struck the plaintiff in the side with a hard object.
22. The "officers" grabbed Parker and threw him to the ground and continued to punch him and strike him repeatedly with fists, a baton and feet and/or knees while he lay defenseless on the ground. These individuals never identified themselves as police officers to Parker.
23. At some point, uniformed officers arrived on the scene and they too struck the plaintiff, while he lay defenseless on the ground. The plaintiff was pushed face first into the ground and was placed in handcuffs.
24. The plaintiff had committed no crime and was not engaged in any criminal or suspicious activity when grabbed, seized, assaulted, battered, handcuffed and arrested.
25. Parker was placed in the rear of a transporting car, and an officer in uniform, Police Officer John Doe, reached in the vehicle and punched Parker in the face.
26. Plaintiff was transported in handcuffs to PSA 6.
27. Parker's requests for medical attention were ignored for almost 5 hours.
28. Parker was eventually taken in handcuffs and shackles to Harlem Hospital for treatment.
29. The plaintiff was imprisoned against his will until he was arraigned on January 21, 2018.
30. At arraignment Parker was falsely charged on docket number 2018NY004427 with having committed the crimes of obstruction governmental administration in the second degree, resisting arrest and harassment in the second degree, based on an accusatory instrument signed under oath by Marino.
31. All criminal charges and the statements made in support thereof were signed by Marino under the penalty of punishment pursuant to New York State Penal Law 210.45, as a class A misdemeanor, were knowingly falsely made.
32. The criminal court complaint falsely states that as Marino and Thompson were

placing Cantres under arrest, Parker punched Thompson in the head; that he pushed Marino and prevented him from arresting Parker, and refused Thompson's order to stop, that he was under arrest.

33. Said statements and the complaint filed in support thereof, were made with the intent to prosecute the plaintiff, Parker for crimes the defendants knew he did not commit.
34. In addition to the false complaint, Marino, upon information and belief, made false statements to the Complaint Room Screener from the New York County District Attorney's Office, with the intent to use said statements to prosecute the Parker.
35. Upon information and belief Marino filed false police reports including but not limited to the arrest report, complaint report, and memobook entries.
36. Upon information and belief Thompson submitted a false supporting deposition to the accusatory instrument accusing Parker of committing the aforementioned crimes.
37. Upon information and belief the officers participated in the conspiracy to file said false reports, and to have the plaintiff falsely charged and prosecuted for crimes that he knew that plaintiff did not commit.
38. That at all relevant times herein, the Defendants were on duty and the defendants were all acting within the scope of their employment, and the defendants' unlawful acts were committed in furtherance of the City of New York's interests, and without legal justification or excuse
39. The plaintiff, Parker, was caused to attend court proceedings on January 21, 2018, February 21, 2018, March 28, 2018, March 29, 2018, April 17, 2018, June 7, 2018, June 14, and August 14, 2018 to defend himself against the false charges.
40. On August 14, 2018 all criminal charges against Parker were dismissed.
41. That notice of the plaintiffs claim and notices of intention to sue for damages, as well as a Supplemental Notice of Claim the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were duly served upon the comptroller of the defendant "City".
42. That a 50(h) hearing was held on September 21, 2018.
43. That more than 30 days have elapsed since the notice of claim and intention to sue

has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

44. That this action is commenced within one year and 90 days after the cause of action arose.
45. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE IMPRISONMENT AGAINST ALL DEFENDANTS

46. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "45" with the same force and effect as if more fully and at length set forth herein.
47. That beginning on or about the 20th day of January, 2018, at or about approximately 3:00 a.m., at or near the "location" until the plaintiff's arraignment on January 21, 2018, the defendants, their agents, servants and/or employees detained and imprisoned the plaintiff without any just cause or grounds.
48. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process, and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff, Parker, was guilty of any crimes for which he was charged.
49. Parker was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.
50. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

51. That all said conduct was committed by the defendants within the scope of their employment with the City of New York and/or the New York City Police Department.
52. Plaintiff was confined against his will until he was arraigned and he was released upon his own recognizance and/or made bail.
53. That by reason of the aforesaid false imprisonment and detention, Parker was subjected to great indignity, humiliation, pain, suffering and loss of freedom and the said plaintiff has been otherwise damaged.
54. That by reason of the aforesaid, Parker has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST AGAINST THE NAMED DEFENDANTS

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "54" with the same force and effect as if more fully and at length set forth herein.
56. That beginning on or about the 20th day of January, 2018, at or about approximately 3:00 a.m. at the "location", the plaintiff, Parker, was handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms.
57. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, when the defendants lacked cause to believe that Parker committed, or was about to commit a crime or was guilty of any crimes.
58. Plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.
59. That the defendants, their agents servants and/or employees, as set forth above, intended to arrest Parker; that the plaintiff was conscious of the arrest and

confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

60. That all said conduct was committed by the defendant officers was within the scope of their employment with the City of New York and/or the New York City Police Department.
61. That by reason of the aforesaid false arrest, the plaintiff, Parker was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.
62. That by reason of the aforesaid, Parker has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
FOR ASSAULT AND BATTERY AGAINST THE DEFENDANTS

63. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "62" with the same force and affect as if more fully and at length set forth herein.
64. On January 20, 2018 at the location Parker was seized, thrown to the ground, struck, punched repeatedly, struck with a baton, kicked, kneed, punched while in handcuffs threatened, handcuffed and physically touched by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including defendant officers.
65. That all said contact was committed without the plaintiff's permission or consent.
66. That all said contact was unlawful and without privilege.
67. That the use of force was without justification.
68. That all contact committed by defendants through their agents, servants, and/or employees, including defendant officers, was offensive to Parker and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or psychological injury.
69. That all said conduct was committed by the officers was within the scope of their employment with the City of New York and/or the New York City Police Department.

70. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff, Parker.
71. That by reason of the aforesaid, plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR EXCESSIVE USE OF FORCE

72. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "71" with the same force and affect as if more fully and at length set forth herein.
73. On January 20, 2018 at the location Parker was seized, grabbed thrown to the floor, handcuffed, punched, struck with a baton, threatened, punched while in handcuffs and physically and emotionally brutalized by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including defendants officers.
74. That all said contact was committed without the Parker's permission or consent.
75. That all said contact was unlawful and without privilege.
76. That the use of force was without justification.
77. That the use of force was excessive and beyond the means necessary to effectuate Parker's arrest.
78. That the use of force was excessive and beyond the means necessary to effectuate Parker's arrest.
79. At no time did any of the officers present intervene, stop, mitigate or prevent the excessive use of force from occurring, although they were present and had the means to do so.
80. That all contact committed by defendants through their agents, servants, and/or employees, including defendants "officers", was offensive to the plaintiffs and caused each to fear further contact and imminent harm, and caused plaintiff Parker to sustain physical and/or psychological injury.
81. That the above acts committed by the defendants constituted an assault and/or battery through the use of excessive force of Parker.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR NEGLIGENCE AGAINST THE DEFENDANTS

82. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "81" with the same force and affect as if more fully and at length set forth herein.
83. That the defendant, "City" was careless and/or negligent in hiring, retaining, training, assigning, failing to retrain, in monitoring, supervising, investigating, disciplining and/or promoting as and for its employees, defendants "Marino", "Thompson", "Diaz" and the Does, in that said employee(s) lacked the experience, deportment and ability to be employed by the defendants in the capacity in which they were utilized, i.e. as police officers; in that the defendant, "City" failed to exercise due care and caution in its hiring and promoting practices; in that the defendant "City" failed to investigate the above named employee's backgrounds; in that the City failed to properly train, supervise and monitor the 'officers; and in that that the defendant City was negligent in disciplining, retraining and retaining the named defendant officers;' and in that the defendants, their agents, servants and employees, were otherwise careless, negligent and reckless.
84. That upon information and belief the City by and through its agents had received numerous civilian complaints and/or lawsuits, against defendants "officers", prior to the stop, seizure, search, discourtesy, false arrest, malicious prosecution, and assault and battery of Parker on January 20, 2018.
85. That the City failed to properly retrain said officers, negligently continued to employ said officers, , negligently assigned retained Marino, Thompson and Diaz despite evidence of their police misconduct and continued to assign said officers to act in an enforcement/arrest capacity, without proper supervision, training and discipline.
86. That the 'officers', the while acting within the scope of their employment, were negligent in that each failed to use such care in the performance of his police duties as a reasonably prudent and careful police officer would have used under similar circumstances; in that each was negligent, careless and reckless in the manner in

which they investigated and/or performed his police dates; in that they failed to intervene or mitigate police misconduct; in that the police department permitted or condoned the false arrest, and/or false documentation submitted by these and other officers; in that they failed to secure prompt and necessary medical attention; and in that they failed to timely notify the New York County District Attorney's Office of exculpatory information; and in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.

87. That the aforesaid occurrence, to wit: seizure, search, arrest, imprisonment assault and battery, excessive use of force, false arrest and imprisonment, malicious prosecution, and the resulting injuries to mind and body therefrom, were caused wholly and solely by reason of the negligence of the defendants, its agents, servants and/or employees including defendants "officers" without any negligence on the part of either of the plaintiffs contributing thereto.
88. That by reason of the aforesaid, the plaintiff, Parker was imprisoned, lost his freedom, injured and stressed, and he was thereby damaged.
89. That by reason of the aforesaid, the plaintiff Parker has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A SIXTH THROUGH EIGHTH CAUSE OF ACTION:
ALLEGING VIOLATIONS OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983, 1985, 1986 AND 1988 BY EACH POLICE OFFICER
IN HIS INDIVIDUAL CAPACITY
AND AS AGENT OF THE CITY OF NEW YORK, PLAINTIFF ALLEGES:

90. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "89" with the same force and effect as if more fully and at length set forth herein.
91. That at all times hereinbefore and hereinafter mentioned, the defendant "Marino" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and

regulations of the City of New York.

92. That at all times hereinbefore and hereinafter mentioned, the defendant Marino was acting pursuant to orders and directives from defendant, The City of New York.
93. That during all times hereinbefore and hereinafter mentioned, the defendant “Marino”, individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983, 1985 and/or 1986.
94. That during all times hereinbefore and hereinafter mentioned, the defendant “Marino”, individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983, 1985 and/or 1986.
95. That at all times hereinbefore and hereinafter mentioned, the defendant “Thompson” was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
96. That at all times hereinbefore and hereinafter mentioned, the defendant Thompson was acting pursuant to orders and directives from defendant, The City of New York.
97. That during all times hereinbefore and hereinafter mentioned, the defendant

“Thompson”, individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983, 1985 and/or 1986.

98. during all times hereinbefore and hereinafter mentioned, the defendant “Thompson”, individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983, 1985 and/or 1986.
99. That at all times hereinbefore and hereinafter mentioned, the defendant “Diaz” was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
100. That at all times hereinbefore and hereinafter mentioned, the defendant Diaz was acting pursuant to orders and directives from defendant, The City of New York.
101. That at all times hereinbefore and hereinafter mentioned, the defendant “Does” were employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
102. That at all times hereinbefore and hereinafter mentioned, the defendant Does were

acting pursuant to orders and directives from defendant, The City of New York.

103. That during all times hereinbefore and hereinafter mentioned, the defendant “Does”, individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983, 1985 and/or 1986.
104. That during all times hereinbefore and hereinafter mentioned, the defendant “Does”, individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983, 1985 and/or 1986.
105. That during all times hereinafter mentioned, the defendant “officers”, individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint, conspired to engage in said conduct and/or acted with deliberate indifference to the illegal and unconstitutional conduct committed upon the plaintiff s, each to the injury of the plaintiffs Parker,, and deprived him of his rights, privileges and immunities secured to him by the Sixth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983, 1985 and/or 1986.

106. That during all times hereinafter mentioned, the defendant “officers”, individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of each of the plaintiffs and deprived plaintiff of the rights, privileges and immunities secured to him by the Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983, 1985 and/or 1986.
107. That the unlawful and illegal conduct of defendant officers deprived plaintiff Parker of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:
- i. The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
 - ii. The right not to be discriminated against based upon the plaintiff’s race, creed, sex, or sexual orientation.
 - iii. The right to Due Process Law.
 - iv. The right to equal protection under the law.
 - v. The right not to be subjected to cruel and unusual punishment
108. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive force, seizure of plaintiff’s person, his false arrest and false imprisonment, assault and battery, falsifying evidence, discrimination and malicious prosecution , and conspiracy to commit the above, the defendant “officers” violated Parker’s rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, “the officers” and violated 42 U.S.C. §1983, 1985 and/or 1986.
109. That by reason of the aforesaid, plaintiff Parker was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and

mental pain.

110. That by reason of the aforesaid, plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper on the sixth cause of action.
111. That by reason of the aforesaid, plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1985 and 1988, and such other relief as to the court may seem just and proper on the seventh cause of action.
112. That by reason of the aforesaid, plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1986 and 1988, and such other relief as to the court may seem just and proper on the eighth cause of action.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST THE DEFENDANTS FOR MALICIOUS PROSECUTION

113. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "112" with the same force and effect as if more fully and at length set forth herein.
114. The defendants filled out false police reports, signed false criminal court complaint and corroborating affidavits against the plaintiff for the purpose of prosecuting him for crimes set forth above they knew that the plaintiffs did not commit.
115. The defendants took such actions, knowingly and with a malicious disregard for the truth, and did so with the intent to cover up the illegal arrest of the plaintiffs and the injuries that each plaintiff sustained at the hands of the police.
116. The plaintiff Parker was at all times innocent of any crime charged.

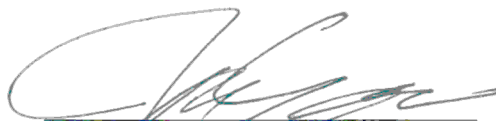
117. That due to the malicious prosecution the plaintiff Parker was caused to miss time from work to attend and appear at New York County Criminal Court on the court dates set forth above.

118. All criminal charges were dismissed against Parker.

119. That by reason of the aforesaid malicious prosecution, Parker has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the plaintiff demands judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the sixth through eighth causes of action) and such other and further relief as to the Court seems just and proper on the First through the Eighteenth causes of action.

DATED: New York, New York
October 1, 2018



Jeffrey L. Emdin, Esq.,
Emdin & Russell, LLP.
Attorneys for the plaintiff
499 Seventh Avenue, Floor 12N
New York, New York 10018
(212) 683-3995

CLIENT VERIFICATION

[illegible]

I, Willie Parker, being duly sworn depose and say: I am the plaintiff in the within the action, I have read the foregoing Verified Bill of Particulars, and know the contents hereof; the same is true to my own knowledge based upon my own knowledge and belief.

Wm. Parker

Willie Parker, Plaintiff

Sworn to before me this
1 day of Oct, 2018

ROYCE RUSSELL, ESQ
Notary Public, State of New York
No. 02RU6074667
Qualified in New York County
Commission Expires 5/20/20

5/18/18

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF NEW YORK

Index No.

WILLIE PARKER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER NICHOLAS MARINO, SHIELD # 19738, INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER WILLIE THOMPSON, SHIELD# 15823, INDIVIDUALLY AND AS A POLICE OFFICER, AND POLICE OFFICER ROMAN DIAZ, SHIELD # 07893, INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICERS JOHN DOE, #1-#3 IDENTITIES UNKNOWN, (BELIEVED TO BE MALE OFFICERS FROM PSA 6), INDIVIDUALLY AND AS POLICE OFFICERS,

Defendants.

SUMMONS AND COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL, LLP

Attorneys for Claimant

499 Seventh Avenue, Floor 12N

New York, NY 10018

(212) 683-3995

To: Office of the Corporation Counsel
100 Church Street
New York, NY. 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Nicholas Marino
Shield # 19738
c/o PSA 6
2770 Frederick Douglass Blvd,
New York, NY 10039

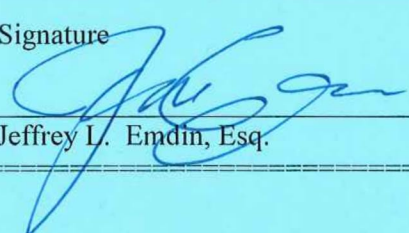
Police Officer Willie Thompson
Shield # 15823
c/o PSA 6
2770 Frederick Douglass Blvd,
New York, NY 10039

Police Officer Roman Diaz
Shield # 07893
c/o PSA 6
2770 Frederick Douglass Blvd,
New York, NY 10039

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: October 1, 2018

Signature


Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on